

lease, as a tenant for life (*a*), though with an absolute power of appointment, but which he does not exercise (*b*), a mortgagee (*c*), devisee subject to debts and legacies (*d*), or to an annuity (*e*), a joint tenant (*f*), or partner (*g*), renew the term upon his own account, he shall hold for the benefit of all parties interested in the old lease; for in consideration of equity the subject of the settlement is not only the lease, but also the right of renewal; and no person taking only a limited interest can avail himself of the situation in which the settlement has placed him to obtain a disproportionate advantage in derogation of the rights of others who have similar claims.

[So where a lessee had assigned the original lease by way of settlement and subsequently, without disclosing the settlement, took a new lease for a longer term in consideration of (in addition to a money payment) the surrender of the lease which was erroneously stated to be vested in him, the renewed lease was held to be bound by the settlement (*h*).]

(*a*) *Eyre v. Dolphin*, 2 B. & B. 290; *Rawe v. Chichester*, Amb. 715; *Coppin v. Fernyhough*, 2 B. C. C. 291; *Pickering v. Vowles*, 1 B. C. C. 197; *Taster v. Marriott*, Amb. 668; *Owen v. Williams*, id. 734; *James v. Dean*, 11 Ves. 383; S. C. 15 Ves. 236; *Kempton v. Packman*, cited 7 Ves. 176; *Giddings v. Giddings*, 3 Russ. 241; *Nesbitt v. Tredennick*, 1 B. & B. 46, *per* Lord Manners; *Crop v. Norton*, 9 Mod. 233; *Buckley v. Lanauze*, Ll. & G. Rep. t. Plunket, 327; *Tanner v. Elworthy*, 4 Beav. 487; *Waters v. Bailey*, 2 Y. & C. C. C. 218; *Yem v. Edwards*, 3 K. & J. 564; 1 De G. & J. 598; *Stratton v. Murphy*, 1 Ir. Rep. Eq. 345. And see *Hill v. Hill*, 8 I. R. Eq. 140, 622; In the matter of *P. Dane*, 5 Ir. Eq. 498; [*Re* Lord Ranelagh's Will, 26 Ch. D. 590.]

(*b*) *Brookman v. Hales*, 2 V. & B. 45.

(*c*) *Rushworth's case*, Freem. 13; *Nesbitt v. Tredennick*, 1 B. & B. 46, *per* Lord Manners.

(*d*) *Jackson v. Welsh*, Ll. & G. Rep. t. Plunket, 346.

(*e*) *Winslow v. Tighe*, 2 B. & B. 195; *Stubbs v. Roth*, id. 548; and see *Webb v. Lugar*, 2 Y. & C. 247; *Jones v. Kearney*, 1 Conn. & Laws, 34.

(*f*) *Palmer v. Young*, 1 Vern. 276.

(*g*) *Featherstonhaugh v. Fenwick*, 17 Ves. 298; *Ex parte Grace*, 1 Bos. & Pul. 376; *Clegg v. Fishwick*, 1 Mac. & G. 294; *Clegg v. Edmondson*, 8 De G. M. & G. 787.

[(*h*) *Re Lulham*, 53 L. J. N. S. Ch. 928; 32 W. R. 1013; affirmed 33 W. R. 788.]

17 Johns. 538; of eighteen; *Bell v. Webb*, 2 Gill. 163; it seems that the time would depend upon the circumstances of the case; *Michoud v. Girod*, 4 How. 561; *Boone v. Chiles*, 10 Pet. 177. See *post* Statute of Limitations and note.